

Tentative Rulings for September 1, 2026

Department PS1

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407885	MOYA VS FCA US, LLC	HEARING ON MOTION TO TAX COSTS BY JESUS MOYA

Tentative Ruling: Code of Civil Procedure section 1032 establishes the general rule for awarding costs in civil action that “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032(b).) The term “prevailing party,” for purposes of costs award, includes “a party in whose favor a judgment of dismissal has been entered.” (Code Civ. Proc., § 1032(a)(4).) Here, it is undisputed that Defendant is the prevailing party for purposes of awarding cost under section 1032. Courts have recognized that this section does not come in conflict with the cost-shifting statute under Civil Code section 1794 of the Song-Beverly Act, which entitles the prevailing buyer the right to recover “costs and expenses, including attorney’s fees” while remaining silent regarding the right of prevailing defendant to recover its costs and fees. (*Duale v. Mercedes-Benz USA, LLC* (2007) 148 Cal.App.4th 718, 727.) Therefore, in a buyer’s action brought under the Song-Beverly Act, a prevailing defendant manufacturer is still entitled to recover its costs pursuant to Code of Civil Procedure section 1032.

Plaintiff contends that Defendant is not entitled to any costs as this case was dismissed without prejudice because a dismissal without prejudice is not a judgment on merits that is prerequisite to Defendant’s entitlement to cost as the prevailing party. This argument is without merit and unsupported by any legal authority. Defendant is the prevailing party in this case for purposes of costs award, irrespective of whether the dismissal was voluntary and without prejudice. The contention that a voluntary dismissal without prejudice is not a judgment that has been rejected by the courts. “A voluntary dismissal immediately resolves the action as to the dismissed defendant. It entitles the dismissed defendant to costs and sometimes attorneys fees as the prevailing party. (Code Civ. Proc., § 1032, subd. (a)(4).)” (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) “Although a voluntary dismissal is generally not appealable, it is nevertheless effectively a ‘judgment’ within the meaning of California Rules of Court, rule 2(a).” (*Ibid.*) Plaintiffs cite *Associated Convalescent Enterprises v. Carl Marks & Co., Inc.* (1973) 33 Cal.App.3d 116, but that case does not stand for the proposition advanced by Plaintiffs. There, the court affirmed a motion for attorney fees brought under Civil Code section 1717 by a voluntarily dismissed defendant, holding that a voluntary dismissal for purposes of fee award under Civil Code section 1717 did not constitute a final judgment for purposes of determining whether defendant was the prevailing party under that provision. (*Id.* at 120-121.) Civil Code section 1717 authorizes recovery of attorney’s fees in an action on a contract to “the party in whose favor final judgment is rendered.” (Civ. Code, § 1717(b)(2).) The court’s determination did not concern the definition of prevailing party for purposes of costs award under Code of Civil Procedure section 1032(a)(4).

Nevertheless, Plaintiff raises a valid challenge to Defendant’s claim for attorney’s fees referenced under Item #10 of the cost memorandum. The costs which a prevailing party is allowed to recover under section 1032 includes attorney’s fees authorized by (1) contract, (2) statute, or (3) law. (Code Civ. Proc., §1033.5(a)(10)(A),(B)&(C).) Here, as Plaintiff points out, there is no basis for Defendant to be seeking attorney’s fees. Defendant indicates in its opposition that it “inadvertently” included a line with a request

for attorney fees, which suggests that Defendant is not objecting to Plaintiff's motion as to attorney's fees. Therefore, the motion shall be granted in part to tax cost as to Item #10.

Otherwise, the motion is denied for reason that Plaintiff makes no valid challenge to the remaining cost items in Defendant's Memorandum of Costs. The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Unless objection is made as to the entire memorandum, the motion to tax cost must refer to each item objected to by the same number and order as the corresponding cost item claimed on the memorandum and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2).) Here, Plaintiffs merely argue that the motion must be granted because Defendant provides no invoices, receipts, or documentation of any kind to support these charges. However, merely alleging in the motion that the costs are neither necessary nor reasonable without a supporting declaration does not meet the burden of showing that the costs are unnecessary. (See *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) Only after the items are properly objected to, then the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at 774.) Therefore, Plaintiffs have not met their initial burden to shift the burden onto Defendant to provide proof of its costs.

Motion to Tax Costs GRANTED in Part. No award for attorney fees.

Defendant awarded Costs in the amount of \$2,578.20.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) A party propounding interrogatories may move for an order compelling a further response if the party deems that an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).)

Special Interrogatory No. 11 asks the District to state in complete detail, how it learned Plaintiff had taken her son to the Latino Commission. In its initial response the District indicated that the current superintendent, Dr. Esparza learned about the case in April 2024 when she was informed by Beatriz Gonzalez that she was the president of the Latino Commission and CEO Contreras wanted to speak to Esparza. The supplemental

response indicates that Karina Vega told Plaintiff about the Latino Commission. These responses are nonresponsive since they do not provide any information as to the date or circumstances of how the District learned that Plaintiff had taken her son to the Latino Counsel.

Following the informal discovery conference conducted by the court with counsel for the District and counsel for Plaintiff, the court finds that the District made an effort to obtain the information requested through sources under its control, including present employees. To the extent those employees are represented by separate counsel and that attorney has declined to provide information to the District or permit the District to speak with those represented District employees, the court finds a sufficient effort was attempted. However, the District shall clarify in a supplemental response the details of the information provided by Ms. Vega informing Plaintiff about the Latino Commission.

No. 31 requests the identities of all persons hired as teachers between 2017 and present. The District responded by providing a list of the teachers hired during the relevant time period. However, as defined, the “identify” includes information regarding salary, credentials, reasons for termination, race and ethnicity. Plaintiff argues that the comparative data is directly relevant to her FEHA claims of racial discrimination and retaliation. The District contends that it does not track racial data and is not required to create documents that do not exist. It also argues that the information is protected by the right to privacy.

“Plaintiffs in FEHA cases can prove their cases by presenting either direct evidence, such as statements or admissions, or circumstantial evidence, such as comparative or statistical evidence.” (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal. App. 5th 663, 687; citing *Hawn v. Executive Jet Management, Inc.* (9th Cir. 2010) 615 F.3d 1151, 1156.) The District does not dispute that comparative data is relevant, but claims that it does not collect data regarding the race or national origin. If a party does not have sufficient personal knowledge to respond fully to an interrogatory, the party shall so state. (CCP § 2030.220(c).) Here, the response does not state that the District is unable to fully respond due to lack of knowledge. As such, the District must provide a further response in compliance with section 2030.220.

The District argues that the information sought is protected by the right to privacy. Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528.) Generally, the public interest in preserving confidential personnel information outweighs a private litigant’s interest in obtaining that information. (*Life Technologies Corp. v. Superior Court* (2011) 197 Cal. App.4th 640, 652.) “Even when the balance does weigh in favor of disclosure, the scope of the disclosure must be narrowly circumscribed.” (*Id.*) However, the District did not object on grounds of privacy. As such, the objection was waived.

The District also objected to #31 on the basis that the interrogatory was compound as addressed in CCP 2030.060(f). The court finds that the interrogatory is not in violation of that section but instead describes what should be included in the response. It should be noted that several of Plaintiff’s special interrogatories have similar language directing the District as to what information should be addressed in the response to a single interrogatory (See #s 11 and 32). Additionally, while no declaration was submitted by

Plaintiff in support of additional interrogatories under CCP 2030.050, the District chose to respond to interrogatories that by their argument would have exceeded the 35 questions permitted instead of objecting to answer under CCP 2030.030(c).

No. 32 requests information that the District provided to the College of the Desert regarding Plaintiff and her son. The District responded that it does not have information as Dr. Valentino and Dr. Esparza have not provided any information to the College of the Desert. It asserts that the other individual Defendants are represented by counsel and the interrogatory should be addressed to them. Plaintiff contends that the information is relevant to Jesus Gonzalez's allegations that Plaintiff fraudulently attained admission to the College of the Desert for her son. She argues that the District had an obligation to consult with other Defendants including Jesus Gonzalez and Beatriz Gonzalez. As with No. 11, the court finds that the District made a reasonable inquiry and was unable to obtain any information from the other Defendants represented by outside counsel. No further responses to Special Interrogatory #32 are ordered.

Sanctions:

The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) "Whenever one party's improper actions even if not "willful"—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party." (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.) The court may consider the issue of sanctions where the responding party serves responses after the motion is filed, rendering the motion moot. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 409.)

Here, all requests for sanctions are denied. Plaintiff failed to sufficiently meet and confer despite the District's counsel's representation that he was engaged in mediation and request for additional time. It appears that the Motions were premature since many of the issues were resolved during the additional meet and confer. Thus, the District's position was substantially justified. However, Plaintiff was successful in some of the remaining disputes. As such, the District is not entitled to sanctions.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Special Interrogatories, Set One, GRANTED as to Special Interrogatories #11 and #31.

Defendant CVUSD to provide verified, code compliant responses, without objection, to Special Interrogatories # 11 and #31 within 15 days.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Special Interrogatories, Set One, DENIED as to Special Interrogatory #32.

Plaintiff's request for Sanctions DENIED.

Defendant CVUSD's request for Sanctions DENIED.

Trial Setting Conference to be conducted. Parties are to be prepared to address readiness for a trial date, as well as discuss the OSC re related case CVPS 2605423 Doe v. Contreras.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) If the demanding party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit, the party may move to compel further responses. (CCP §2031.310(a)(1)-(3).) The moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

The only RFP response currently in dispute is the response to RFP No. 43 which seeks all emails containing the keywords “Carissa” or “Carrera” in the email accounts of several employees. The District indicates that it is in the process of producing the emails in PDF form on a rolling basis. Plaintiff argues that the documents must be produced in native form rather than PDF. Pursuant to CCP § 2031.030(a)(2), “[a] party demanding inspection, copying, testing, or sampling of electronically stored information may specify the form or forms in which each type of electronically stored information is to be produced.” Here, the RFP specifies that for all documents maintained in an Outlook or “pst” file, please drag and drop into a file in order to maintain metadata rather than printing to a PDF. The District did not object to this form of production. As such, the District is ordered to provide a supplemental response and produce documents in their native format.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Request for Production, Set One, GRANTED.

Defendant CVUSD to provide verified, code compliant responses and documents, without objection, to Request for Production, Set One within 45 days.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) The fee award is limited to fees and costs incurred on the special motion to strike, and not the entire litigation. (See *S. B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381; 569.) The fee award may not include matters unrelated to the anti-SLAPP motion, such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research or attending a mandatory case management conference. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The fee award is designed to "reimburse the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit [citation omitted] rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (Id, emphasis in original.)

Prevailing Party Analysis:

Generally, voluntary dismissal of a lawsuit terminates the trial court's jurisdiction over the matter." (*O'Dell v. Freightliner Corp.* (1992) 10 Cal.App.4th 645, 659.) If a plaintiff dismisses the action while anti-SLAPP motion is pending, the trial court is given the limited jurisdiction to determine whether the attorney's fees are proper. (*Law Offices of Andrew L. Ellis v. Yang* (2009) 178 Cal. App. 4th 869, 878-879.) "[A] defendant who is voluntarily dismissed, with or without prejudice, after filing a section 425.16 motion to strike, is nevertheless entitled to have the merits of such motion heard as a predicate to a determination of the defendant's motion for attorney's fees and costs under subdivision (c) of that section." (*Liu v. Moore* (1999) 69 Cal. App. 4th 745, 751.) Before awarding fees and costs, the court must determine whether the defendant would have prevailed on his or her anti-SLAPP motion. (*Tourgeman v. Nelson & Kennard* (2014) 222 Cal.App.4th 1447, 1457.) Doe is entitled to a determination of her Anti-SLAPP Motion for the purpose of establishing prevailing party status under the anti-SLAPP statute.

In applying the anti-SLAPP statute, the Court engages in a two-step process: first, the moving defendant must demonstrate that the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech. (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal. 4th 728, 733.) Once such a prima facie showing has been made, the court then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. (*Id.*) The court does not weigh the credibility or comparative probative strength of competing evidence, but should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal. App. 4th 1027, 1044.) The anti-SLAPP statute should be

construed broadly in favor of the exercise of freedom of speech. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1119.)

The parties do little to address the issue of the merits in connection with the fee motion. Instead, they rely on the Anti-SLAPP Motion itself. Pursuant to her Anti-SLAPP Motion, Doe argued that this lawsuit meets the first prong of the anti-SLAPP statute because it is based on the filing of a lawsuit and a prelitigation demand letter. Plaintiff did not oppose the Motion.

“To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the allegedly wrongful and injury-producing conduct, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387.) Litigation related conduct and communications, including filing, funding, prosecuting, and defending a lawsuit are protected activity under CCP § 425.16 (b)(1). (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113.) The courts have “[r]ecognized petitioning activities thus include not only the conduct of litigation but also acts and communications reasonably incident to litigation, including prelitigation settlement negotiations.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1025.) Prelitigation statements generally fall within CCP § 425.16(e)(1) and (2). (*Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 377.) “Ordinarily, a demand letter sent in anticipation of litigation is a legitimate speech or petitioning activity that is protected under section 425.16.” (*Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1293.)

Plaintiff’s causes of action are based on the contents of a prelitigation letter sent by counsel or on this letter and the filing of a lawsuit by Doe in Los Angeles County. (Complaint, ¶¶ 60, 68, 69, 75, 77, 84, 91, 92, 97, 98, and 107.) The Court previously determined that this conduct appears satisfied the first prong of the anti-SLAPP statute in granting the Fierberg Defendants’ Anti-SLAPP Motion. The same analysis applies here. Doe has established that the Complaint involves protected activity.

Doe asserts that Plaintiff cannot meet the second prong of the statute because Plaintiff’s claims are barred by the litigation privilege and fail as a matter of law. The litigation privilege applies “to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) “The privilege is absolute and applies regardless of malice. However, the privilege does not apply to malicious prosecution actions.” (*Malin, supra*, 217 Cal.App.4th at 1300.) Prelitigation communications also fall within the litigation privilege, if they relate to litigation contemplated in good faith and under serious consideration. (*Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Good faith requires a connection or logical relationship between the prelitigation communication to a contemplated action and the communication is made to achieve the objects of litigation. (*Id.*) A prelitigation settlement demand that relates to litigation threatened by an individual, where the statements in the letter bear a connection or relationship to the proposed litigation and pertains to settlement, meets these requirements. (*Flickinger v. Finwall* (2022) 85 Cal. App. 5th 822, 840.)

In this case, the first cause of action is based entirely on the prelitigation letter. The second, third, fourth, fifth, sixth, and seventh cause of action are based on the prelitigation letter and the filing of the sexual battery lawsuit. (Complaint, ¶¶ 60, 68, 69 71, 75, 77, 84, 91, 92, 97, 98, and 107.) The litigation privilege applies to the filing of the lawsuit. Therefore, Plaintiff's claims fail to the extent that they are based on the filing. Moreover, the prelitigation settlement letter was sent for settlement purposes. (RJN, Ex. CC. Ex. O.) As such, the claims based on the prelitigation settlement letter are also barred. Plaintiff has not produced any evidence in opposition to either the Anti-SLAPP Motion or fee motion. Accordingly, Doe has established that she would have prevailed on the merits of the Anti-SLAPP Motion. As such, she is entitled to fees and costs.

Lodestar Analysis:

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) “The “experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong” []—meaning that it abused its discretion. [Citations.]” (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Id at 1096.) Counsel asserts that his customary hourly rate is \$550. (Decl. of Simon, ¶ 11.) This rate is reasonable for similar work in Riverside County.

In his initial briefing, counsel for Plaintiff did not provide any information regarding the tasks performed that would allow the Court to determine whether the fees were reasonable and incurred in the prosecution of the Anti-SLAPP Motion. On July 15, 2026, counsel filed a Supplemental Declaration with billing records highlighting the hours spent on the Anti-SLAPP Motion and present Fee Motion and Reply. The highlighted fees total \$24,814.75 according to the records. However, the highlighted items total \$20,405.00.

Plaintiff challenges three phone calls with client on January 27, 2026 (\$880), January 29, 2026 (\$330) and March 12, 2026 (\$220). The subject is redacted to preserve attorney client privilege. Plaintiff argues that this redaction prevents the Court from determining whether the fees were related to the Anti-SLAPP Motion. The “prevailing defendant on a special motion to strike under Code Civ. Proc. § 425.16 may support request for attorney fees with billing records redacted to conceal information protected by

the attorney-client privilege; defendant was not required to waive the privilege to obtain fees.” (*Concepcion v. Amscan Holdings, Inc.* (2016) 223 Cal. App. 4th 1309, 1327; *Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 39 Cal.App.4th 1379, 1382.) However, the January 27, 2026 entry states: “Research; telephone conferences with client re: redacted. This phone call occurred nearly three months before the Anti-SLAPP Motion was filed. According to emails between counsel, it appears that the parties were still working out issues related to service of the Complaint on January 29, 2026. As such, it does not appear that the January phone calls were related to the Anti-SLAPP Motion. Those fees shall be stricken. However, it is not as clear that the March 12 phone call was unrelated to the Anti-SLAPP Motion so Doe may recover the \$220 in fees.

Plaintiff also challenges 1.6 hours (\$880) billed on January 29, 2026 to review documents and pleading and conduct research. Plaintiff’s challenge is well taken as these hours appear to involve basic case review conducted months before the Anti-SLAPP Motion was filed. Thus, these fees shall be stricken.

Plaintiff challenges .2 hours (\$110) on January 29, 2026 for emails with Plaintiff’s counsel regarding service relative to filing of the Anti-SLAPP Motion. A fee award under the anti-SLAPP statute may not include matter unrelated to the motion, including service of process issues. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The email attached to counsel’s May 13, 2026 Declaration shows that the January 29 email was related to service of the Complaint and was unrelated to the Anti-SLAPP Motion. This fee shall be stricken.

Finally, Plaintiff challenges .3 hours (\$165) incurred to analyze the court docket and local rules in anticipation of Anti-SLAPP Motion. Fee for obtaining the docket at the inception of the case is generally not incurred in the preparation of an anti-SLAPP motion. (*569 East County Boulevard, supra*, 6 Cal. App. 5th at 433.) However, the fees at issue were not incurred at the inception of the case. Counsel indicates that this review was in anticipation of the Anti-SLAPP Motion, which was filed one month later. This is sufficient to establish that the fees were related to the Anti-SLAPP Motion.

Overall, the fee request shall be reduced by \$2,200 to \$18,205.

Doe also requests costs in the amount of \$534.30 consisting of the \$474.30 and the \$60.00. Plaintiff does not appear to challenge the first appearance fee. Generally, filing fees are recoverable under CCP §1033.5(a)(1).)

Defendant Jane Doe’s Motion for Attorney’s Fees GRANTED

Award for attorney fees in the amount of \$18,205 + \$534.30 costs.

Total award of \$18,739.30.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2604068	LIGHTHOUSE HOSPICE CARE, LLC VS ADEYEMI	HEARING ON PETITION RE: ARBITRATION AWARD

Tentative Ruling:

No Response filed by Respondent Adeyemi. Proof of service of petition shows Respondent was personally served a copy of the Petition to Confirm Arbitration Award on August 16, 2026. No response has been timely filed pursuant to CCP 1290.6.

The allegations of the petition are deemed admitted by the Respondent pursuant to CCP 1290.

The court CONFIRMS the arbitration award of \$707,003.98 as described in Order #20 and Order #21. Interest to be paid at the annual rate of 7% from January 27, 2025.

Attorney's fees and costs to be awarded on noticed motion.

Petitioner to submit a proposed order and proposed judgment.

OSC re proposed order and judgment set for October 1, 2026.